

**PLACER COUNTY SUPERIOR COURT
THURSDAY, CIVIL LAW AND MOTION
DEPARTMENT 3
THE HONORABLE MICHAEL W. JONES
TENTATIVE RULINGS FOR JULY 30, 2026, AT 8:30 A.M.**

These are the tentative rulings for the **THURSDAY, JULY 30, 2026, at 8:30 A.M.**, civil law and motion calendar. The tentative ruling will be the court's final ruling unless notice of appearance and request for oral argument are given to all parties and the court by **4:00 p.m., WEDNESDAY, JULY 29, 2026**. Notice of request for argument to the court must be made by calling (916) 408-6481. Requests for oral argument made by any other method will not be accepted. Prevailing parties are required to submit orders after hearing to the court within 10 court days of the scheduled hearing date and approval as to form by opposing counsel. Court reporters are not provided by the court. Parties may provide a court reporter at their own expense.

NOTE: REMOTE APPEARANCES ARE STRONGLY ENCOURAGED FOR CIVIL LAW AND MOTION MATTERS. (PLACER COURT LOCAL RULE 10.24.) More information is available at the court's website: www.placer.courts.ca.gov.

Except as otherwise noted, these tentative rulings are issued by **THE HONORABLE MICHAEL W. JONES**. If oral argument is requested, it shall be heard at **8:30 a.m.** in **DEPARTMENT 3** located at the Historic Auburn Courthouse, 101 Maple Street, Auburn, California.

1. M-CV-0097654 VINEYARD GATE APTS v. DAVIS, MAHAGANY

This tentative ruling is issued by the **Honorable Albert A. Erkel**. If oral argument is timely requested, it will be heard on **Wednesday, August 5, 2026, at 1:00 p.m. in Department 4**.

Motion to Set Aside Judgment

On July 15, 2026, the court held a bench trial on plaintiff's unlawful detainer complaint. Plaintiff appeared whereas defendant did not. The court entered judgment in favor of plaintiff and against defendant.

The same day, defendant filed an ex parte application for stay pending hearing on motion to set aside judgment that indicated defendant did not receive the court's notice of trial because it was sent to apartment number #110 but defendant resides at apartment number #1100. The court granted a stay and set a hearing on the motion to set aside judgment for July 30, 2026. The court's order also provided

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Defendant shall file and serve a copy of the motion to set aside judgment and this order on plaintiff or, if plaintiff is represented by counsel, then on plaintiff's counsel by no later than July 16, 2026 at 5:00 p.m. Service may be effected by personal service, emailed service, or by facsimile. Proof of service shall be filed with the court no later than July 20, 2026. Failure to timely serve and timely file a proof of service with the court is a sufficient basis for the court to deny defendant's motion
(Order on Ex Parte Application for Stay of Execution, p. 2.)

A review of the court record reveals no proof of service of defendant's motion or the court's order has been filed.

Accordingly, defendant's motion is continued to **August 13, 2026, at 8:30 a.m. in Department 3.**

Defendant shall serve on plaintiff's counsel of record—by personal service, e-mail, or facsimile—their motion to set aside judgment, the court's order on ex parte application for stay of execution, and the court's July 30, 2026, tentative ruling and file a proof of service of these documents on or before **August 4, 2026**. Plaintiff shall file an opposition on or before **August 7, 2026**.

The stay of execution shall be extended to August 13, 2026, at 11:59 p.m.

2. S-CV-0047960 NOVAK, CHRISTOPHER v. THOMPSON, GREGORY

The mediation status conference is dropped from calendar in light of the parties' joint mediation status conference statement filed with the court on July 24, 2026.

3. S-CV-0051046 NELSON, MICHAEL v. RONK, SUZY

Plaintiffs' Motion to Disqualify Burton & Swett as Counsel for Defendants

Plaintiffs move to disqualify the firm Burton & Swett as counsel for defendants on the grounds that defendant Suzy A. Ronk has a claim directly adverse to defendants Kent Rhodes and Susan Rhodes. (CA ST RPC Rule 1.7, subd. (d).)

The court first notes that plaintiffs have standing to bring this motion. (*Kennedy v. Eldridge* (2011) 201 Cal.App.4th 1197, 1204.)

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California Rules of Professional Conduct, Rule 1.7 provides “A lawyer shall not, without informed written consent from each client and compliance with paragraph (d), represent a client if the representation is directly adverse to another client in the same or a separate matter.” (CA ST RPC Rule 1.7, subd. a.) As relevant here, representation is not proper if it “involve[s] the assertion of a claim by one client against another client represented by the lawyer in the same litigation or other proceeding before a tribunal.” (*Id.* at subd. (d).)

A disqualification motion based on concurrent representation, such as here, requires the court to focus on the attorney’s duty of loyalty. (*Sharp v. Next Entertainment, Inc.* (2008) 163 Cal.App.4th 410, 428.) “A conflict arises when the circumstances of a particular case present a substantial risk that the lawyer’s representation of the client would be materially and adversely affected by the lawyer’s own interests or by the lawyer’s duties to another current client, a former client, or a third person. [Citation.] An adverse interest is one that is hostile, opposed, antagonistic . . . detrimental, [or] unfavorable to another’s interests.” (*Walker v. Apple, Inc.* (2016) 4 Cal.App.5th 1098, 1110–11.) However, mere hypothetical conflicts are insufficient. (*Havasu Lakeshore Investments, LLC v. Fleming* (2013) 217 Cal.App.4th 770, 779.) “Ultimately, disqualification motions involve a conflict between the clients’ right to counsel of their choice and the need to maintain ethical standards of professional responsibility. . . . The important right to counsel of one’s choice must yield to ethical considerations that affect the fundamental principles of our judicial process.” (*People ex rel. Dept. of Corporations v. Speedee Oil Change Systems, Inc.* (1999) 20 Cal.4th 1135, 1145.)

Concurrent representation between defendants is proper here. There are no assertions of claims by defendant Suzy A. Ronk against defendants Kent Rhodes and Susan Rhodes. Additionally, all defendants signed informed written consents that waived any potential conflicts between them.

The court would be remiss to not mention the timing of plaintiffs’ disqualification motion. It was filed at the same time as plaintiffs’ motion for trial preference and almost three years after the litigation commenced. “[W]here, as here, the persons who are personally concerned with the alleged conflict of interest are not objecting, and disqualification is sought by a litigation adversary who is not personally interested in the alleged conflict, courts must be skeptical. . . . They can be used to harass opposing counsel, to delay the litigation, to intimidate an adversary into accepting settlement on otherwise unacceptable terms, or for other strategic purposes.” (*McPhearson v. Michaels Co.* (2002) 96 Cal.App.4th 843, 849–850.) Such concerns are present here.

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Accordingly, plaintiffs' motion is denied.

Plaintiff's Motion for Preferential Trial Setting CCP § 36(a)

Plaintiffs' motion for trial preference is granted. (Code Civ. Proc., § 36, subd. (a).) The court finds plaintiffs are over 70 years old, have a substantial interest in the action as a whole, and their injuries from the recent motor vehicle accident and Deborah Nelson's heart issues are such that a preference is necessary to prevent prejudicing his interest in the litigation. (*Ibid.*; *Id.* at § 36.5.)

The matter is set for a jury trial commencing Monday, November 23, 2026, at 8:30 a.m. in a department to be assigned. The parties are to report to Jury Services/Master Calendar. The parties shall contact Jury Services/Master Calendar the Friday prior to trial, between 1:00 p.m. and 3:00 p.m. for further assignment information.

A civil trial conference is set for Friday, November 13, 2026, at 8:30 a.m. in Department 3. The parties are referred to Placer Court Local Rules 20.4 and 20.1.11 for more information as to what is required to be presented at the conference.

A mandatory settlement conference is set for Wednesday, November 4, 2026, at 8:30 a.m. in Department 6. The parties are to report to Jury Services/Master Calendar.

If oral argument is requested with respect to the trial and related dates chosen by the court, the parties are ordered to meet and confer in good faith prior to the hearing, which includes acting within the spirit and meaning of the California Attorney Guidelines of Civility and Professionalism, to select mutually agreed upon trial dates.

4. S-CV-0054586 JAHANSHAHI, SHAHROUZ v. BULGARI CORP. OF AM.

Defendant Bulgari Corporation of America's Motion to Set Aside Sanctions

Preliminary Matters

The court notes defendant's reply papers were untimely filed. The court admonishes defendant to adhere to statutory filing deadlines for future filings.

Ruling on Motion

Defendant moves to set aside the court's order imposing \$1,350 in sanctions against it pursuant to Code of Civil Procedure section 473, subdivision (b).

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Code of Civil Procedure section 473, subdivision (b) provides, in relevant part, The court may, upon any terms as may be just, relieve a party or the party's legal representative from a[n] . . . order . . . through the party's mistake, inadvertence, surprise, or excusable neglect. Application for this relief shall be . . . made within a reasonable time, in no case exceeding six months, after the . . . order . . . was taken.

(Code Civ. Proc., § 473, subd. (b).)

Defendant specifically contends setting aside the sanctions order is proper because its lead counsel was out on medical leave indefinitely from March 2026 onwards and thus any failure to oppose plaintiff's motion to withdraw from arbitration was due to mistake, inadvertence, surprise, or excusable neglect.

However, the court did not impose sanctions because defendant failed to oppose the motion. Rather, Code of Civil Procedure section 1281.97, subdivision (a) requires the court to impose a monetary sanction against any party that materially breaches the arbitration agreement. A material breach includes the failure to pay fees and costs of arbitration. (Code Civ. Proc., § 1281.97.) An exception to the imposition of monetary sanctions is if defendant's failure to pay the arbitration fees was the result of defendant's good faith mistake, inadvertence, or other excusable neglect. (*Hohenshelt v. Superior Court* (2025) 18 Cal.5th 310, 323.)

It does not appear that defendant's counsel's absence beginning in March 2026 was a good faith mistake, inadvertence, or excusable neglect that resulted in the nonpayment of arbitration fees in October and November 2025. Nor does counsel provide any facts suggesting the nonpayment was due to a good faith mistake, inadvertence, or excusable neglect.

Accordingly, defendant's motion is denied.

5. S-CV-0055740 LEGRAND, BRIAN v. LEGRAND, KAREN

The demurrer is continued to **August 20, 2026, at 8:30 a.m. in Department 3.**

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6. S-CV-0056731 DILLON, JOHN v. S D OLSEN CONSTRUCTION

Plaintiff's Motion to Set Aside and Vacate Clerk's Entry of Default Against Defendant S D Olsen Construction Inc. and for Leave to File First Amended Complaint

On July 2, 2026, the court granted plaintiff's ex parte application to shorten time on its motion to set aside and vacate clerk's entry of default against defendant S D Olsen Construction Inc. and for leave to file first amended complaint. The court also required plaintiff to serve defendant with the court's order and moving papers on or before July 2, 2026.

A review of the court record reflects no proof of service has been filed that established service was timely effectuated. Accordingly, plaintiff's motion is denied without prejudice.